

**FEDERAL MARITIME COMMISSION**

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HANGZHOU QIANWANG DRESS CO., LTD.

Docket No. 17-02

Complainant,

-against-

RDD FREIGHT INTERNATIONAL INC.

Respondent.

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**RDD'S PROPOSED  
FINDINGS OF FACT**

Respondent RDD FREIGHT INTERNATIONAL INC. ("RDD"), by and through its undersigned counsel, hereby submits the Proposed Findings of Fact as follows:

1. RDD was and still is a licensed cargo forwarder and a Non-Vessel Ocean Carrier (NVOCC)(RDD Exhibit 1).
2. RDD has been carrying the surety bonds which became the Complainant's target (RDD Exhibit 2).
3. RDD carried the goods in question under Bills of Ladings issued but denies the rest of the Complainant's allegations (RDD Exhibit 3).
4. RDD contracted with the Complainant for transportation of the goods in question.
5. Complainant agreed but later refused to pay freight charge in breach of the said contract.
6. Under the said Bills of Lading, the three containers of goods became the subject matter of this case whereby the Complainant seeks to recover the invoice value of the goods in question -- from RDD but not from SWAK Kids Inc. was the designated consignee.
7. RDD's employee was defrauded and misled by SWAK KIDS INC. into releasing the goods to the said consignee by relying upon latter's misrepresentation that she was

- authorized to do so (RDD Exhibit 4).
8. While waiting for the Complainant's instructions, RDD's employee was defrauded and misled into releasing the goods to the said consignee – in a good faith and bona fide effort to save the \$450.00 per day demurrage for the said Consignee (RDD Exhibit 4).
  9. The Consignee SWAK KIDS, upon paying the Complainant the sum of \$10,000, has failed to pay the balance of \$123,408.00, which constitutes the Complainant's claim in this case.
  10. Complainant never tried to collect the said sum of money from the Consignee SWAK KIDS, nor to even contact them to collect the same. In an email letter addressed to the FMC, the digital signature contains "Kid Apparel Club" which is the same as the Consignee SWAK KIDS! RDD submits that the Complainant has colluded with SWAK KIDS to extract monies from RDD (RDD Exhibit 5).
  11. RDD has counterclaimed that the Complainant had conspired with the said consignee to make RDD pay out of its surety bonds.
  12. On or about May 17, 2018, while this case is still pending, the Complainant has settled its claims against RDD and Zhejiang Handsome Int'l - its counterpart in China under the Chinese Court Procedures whereby RDD would pay the sum of \$61,704.00 representing 50% of the value of the claims; RDD paid and Complainant received in full settlement of its claims. (RDD Exhibit 6).

RESPECTFULLY SUBMITTED on this day July 28, 2018.



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